

25SMCV04685 25SMCV04685

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 25SMCV04685 Hearing Date: September 16, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 200

JOHN SISCEL IV,

Plaintiff,

v.

CHAY ZHU, et al.,

Defendants.

Case No.: 25SMCV04685

Hearing Date: September 16, 2026

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR

LEAVE TO FILE SECOND AMENDED

COMPLAINT

BACKGROUND

This case arises from a landlord-tenant dispute. Plaintiff John Siscel claims that his landlord, Defendant Chay Zhu, retaliated against him when he filed a complaint with the Los Angeles Housing Department. Plaintiff also sued Zhu's insurer, State Farm. The claims against State Farm have been dismissed.

Zhu filed a demurrer and motion to strike the claims against her. The Court denied the motion to strike but sustained the demurrer in part with 20 days' leave to amend. Plaintiff did not amend within the 20 day period (or by May 18, 2026).

This hearing is on Plaintiff's motion for leave to file second amended complaint. Counsel represents that the failure to file the amended complaint was a result of "his intermittent illness, reduced work capacity and staffing transitions." He says he did not learn of the error until July 7, 2026 at which point he tried to file corrected pleadings but they were rejected. There was no opposition filed as of this tentative ruling.

LEGAL STANDARD

Under California Rules of Court Rule, Rule 3.1324, subdivision (a), a motion to amend a pleading shall:

- (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and
- (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

In addition, under California Rules of Court, Rule 3.1324, subdivision (b), a separate declaration must accompany the motion and must specify:

- (1) the effect of the amendment;
- (2) why the amendment is necessary and proper;
- (3) when the facts giving rise to the amended allegations were discovered; and
- (4) the reasons why the request for amendment was not made earlier.

The Court's discretion to grant leave "should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) Ordinarily, the Court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. The Court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390).)

DISCUSSION

Plaintiff has complied with the procedural requirements for filing a motion for leave to amend. He has identified the allegations to be added or deleted. And his counsel has filed a declaration that provides the information required by California Rules of Court, Rule 3.1324.

Turning to the merits of the motion, the Court had previously granted Plaintiff leave to amend by May 16, 2026. Counsel missed the deadline but attributes it to his mistake, not Plaintiff's. Given counsel's admission of fault and the liberal policy favoring amendments, the Court concludes that Plaintiff should be given leave to amend in the absence of any prejudice to Defendant.

Here, there is no evidence of prejudice to Defendant from the four-month delay (from May 2026 to September 2026). The Court did not sustain Defendant's demurrer entirely, so Defendant knew that she still had to defend against most of Plaintiff's claims. Further, the facts underlying the causes of action that the Court dismissed with leave to amend are similar to those that underlie the other claims on which the Court overruled the demurrer so there is no surprise to Defendant as to the factual allegations against him. Also, trial is set for January 16, 2029 which gives Defendant more than enough time to conduct discovery on (and otherwise prepare his defense to) Plaintiff's amended allegations.

CONCLUSION AND ORDER

Based on the foregoing, the Court GRANTS Plaintiff's motion for leave to file the second amended complaint. Plaintiff must file the SAC within 5 days of this Court's order.

IT IS SO ORDERED.

DATED: September 16, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court